

Draft RFE Response Framework

Venezuela — Affirmative Asylum / Political Persecution

Prepared: May 21, 2026 | Response Deadline: ~30 days | Attorney Review Draft

HIGH URGENCY. Response deadline approximately 30 days. Attorney review and action required immediately.

ATTORNEY REVIEW DRAFT. This framework does not constitute legal advice and must not be submitted to USCIS without attorney review and approval.

1. Matter Summary

Client name: Not provided (Venezuela political persecution matter)

Matter type: Affirmative asylum

Filing type: Form I-589, Application for Asylum and Withholding of Removal

Current procedural posture: RFE issued by USCIS asylum officer; response due approximately 30 days from date of RFE

Humanitarian category: Asylum — political opinion / particular social group (nexus TBD)

Filing date: Unknown — one-year bar analysis should be confirmed prior to response submission

2. Issues Raised by USCIS

Issue Raised	Why It Matters	Response Goal
Insufficient nexus between threats and a protected ground	This is the legal heart of the claim. Without nexus, no asylum relief is available regardless of harm. USCIS is signaling the claim reads as general criminal targeting rather than persecution on account of political opinion.	Establish through evidence and legal argument that threats were motivated by client's political opinion and that actors' ties to local officials bring harm within government persecution or failure to protect.
Inconsistencies between declaration and intake timeline	Credibility is foundational. Inconsistencies — even if trauma-related — invite adverse credibility findings under the REAL ID Act.	Identify all inconsistencies, reconcile where possible with supporting documentation, address remaining gaps with psychological evaluation and supplemental declaration.
Insufficient corroborating evidence overall	Corroboration is expected when reasonably available. Current package (screenshots, photos, partial police report) is thin for an affirmative filing.	Strengthen with witness affidavits, completed translated police report, country conditions evidence, and psychological evaluation.

3. Recommended Evidence

Political Activity Evidence

- Demonstration photos — already provided; supplement with date/location context for each photo if not already annotated
- Social media records — posts, shares, group affiliations, or event attendance corroborating political activity
- Group membership or affiliation evidence — documents, communications, or records showing involvement with the political movement
- News or media coverage of specific demonstrations client attended
- **Expert declaration on Venezuelan political conditions — documenting government use of paramilitary/colectivo groups to suppress political opposition; most direct path to establishing government nexus**

Nexus Evidence (Government Connection)

- Evidence identifying the threatening group — linking armed men or threatening actors to named colectivos, PSUV-affiliated groups, or local government structures
- Country conditions reports — U.S. State Dept. Country Report on Venezuela (most recent), HRW, Amnesty International, and UNHCR reports on targeting of political dissidents
- News articles or reports documenting the specific political group, the region, and known methods of political intimidation

Timeline and Credibility Evidence

- Complete police report — the partial translation must be replaced with a full certified translation; include certification of translator credentials
- Contemporaneous communications — emails, messages, or calls showing client's state of mind or movements around the time of threats and departure
- Travel records — departure documentation, flight records, or border crossing records that help establish the timeline

Witness Statements

- **Coworker affidavit — one or more coworkers who witnessed armed men appearing at the workplace and asking for the client by name; this is the most concrete documented threat and deserves direct corroboration**
- Family or community member affidavit — someone in Venezuela (or who has since fled) with direct knowledge of the threats, the political group, or the client's political activity
- Affidavit from U.S.-based relative — Florida relative who can attest to client's account, demeanor on arrival, and any communications with Venezuela since departure

Medical / Psychological Evidence

- **Psychological evaluation — most consequential missing item; must address: (1) PTSD or trauma diagnosis consistent with described events; (2) impact of trauma on memory and timeline consistency; (3) client's credibility as a trauma survivor. Directly addresses both credibility and inconsistency issues raised in RFE.**
- Medical records — include if any physical harm occurred; if none, confirm and note in the response

Country Conditions Evidence (Attorney-Sourced)

- U.S. Department of State: 2023-2024 Country Reports on Human Rights Practices: Venezuela
- Human Rights Watch: Venezuela country reports (most recent)

- Amnesty International: Venezuela reporting
- UNHCR guidance on Venezuelan protection claims
- Reports documenting colectivos and government-linked armed groups targeting political dissidents

4. Narrative Clarifications Needed

Attorney must conduct a targeted follow-up client interview addressing each item below before drafting the supplemental declaration.

- **Timeline inconsistencies between declaration and intake notes — attorney must obtain the exact points of inconsistency from the RFE, compare both documents, and determine whether each gap is explainable, requires correction, or requires a supplemental declaration**
- Date of demonstration participation vs. date of first threat — the causal chain (participated then threatened then fled) needs precise sequencing; if dates are inconsistent, the nexus argument weakens
- Identity of threatening actors — 'connected to local officials' is vague; declaration should be more specific if possible; if client does not know the group's name, that should be stated clearly rather than left ambiguous
- Number and timing of threat incidents — 'multiple threats' needs to be unpacked: how many, when, in what form, and what client did in response each time
- Why client went to police if police report exists vs. stated fear of government — if she reported to police, this must be reconciled with the claim that government-linked actors were the threat; explain the circumstances
- Exact departure date and circumstances — how client left Venezuela, who knew, and whether she experienced any threats or surveillance at time of departure
- Son's presence during any incidents — whether son witnessed or was present during threats; affects both his independent claim and the humanitarian weight of the matter

5. Recommended Response Structure

1. Introduction — brief summary of the matter, RFE issues, and the firm's response; state that supplemental evidence is being submitted and that the declaration has been clarified
2. Procedural History — date of I-589 filing, date of RFE, response deadline, and summary of current evidentiary record
3. Response to Issue 1: Nexus to a Protected Ground — lead with legal framework (political opinion under INA 101(a)(42)(A)); present factual argument (political activity, threats, nexus); anchor with country conditions and expert declaration
4. Response to Issue 2: Credibility and Timeline Inconsistencies — address each specific inconsistency cited in RFE; provide corrected or clarified account; explain reason for inconsistency; attach psychological evaluation and supplemental declaration
5. Response to Issue 3: Corroborating Evidence — introduce supplemental evidence package: completed police report translation, witness affidavits, social media records, country conditions materials, psychological evaluation
6. Humanitarian Considerations — address client's vulnerability as a single mother with a minor child, documented emotional distress, and particular risks to Venezuelan political dissidents if returned
7. Conclusion — request approval of I-589; note that supplemental package addresses each RFE concern; do not make predictions about outcome

6. Urgency & Deadline Review

Concern	Impact	Recommended Action
30-day response deadline	Hard USCIS deadline — missing it typically results in abandonment of the application	Begin response preparation immediately; do not wait for all evidence before starting legal argument draft
Psychological evaluation lead time	Evaluations typically take 2-4 weeks; if started today it may arrive at or just after the deadline	Contact evaluator immediately; request expedited evaluation given the USCIS deadline
Police report translation	Partial translation is insufficient; certified translation required for submission	Retain certified translator immediately; prioritize alongside psych eval
Witness affidavit collection	Witnesses in Venezuela may be difficult to reach and may face safety risks in providing statements	Begin outreach through client immediately; prioritize U.S.-based witnesses first
One-year bar confirmation	If not previously confirmed, bar status affects whether the affirmative filing was timely	Confirm before submitting response — do not surface a bar issue for the first time in an RFE response
Credibility issues	If inconsistencies are more significant than currently known, response strategy may need to shift	Attorney must review both the declaration and intake notes against the full RFE text before any drafting begins

OVERALL URGENCY: HIGH. Thirty days is workable but tight given the number of evidence items needed. Attorney should begin immediately.

7. Attorney Review Notes

Strongest issue for the firm: The workplace incident — armed men appearing at the client's place of employment and asking for her by name — is specific, concrete, and memorable. If corroborated by a coworker affidavit, it is the most persuasive single fact in the record. Build the response around this incident.

Weakest issue: The nexus argument. 'Connected to local officials' is asserted but unsubstantiated. Without evidence that threatening actors were government agents or acting under government color, this reads as private criminal conduct — which generally does not establish asylum eligibility. Country conditions evidence and an expert declaration are essential.

Biggest evidentiary gap: No witness corroboration of any incident. Every fact currently rests solely on the client's account. A single credible coworker affidavit describing the workplace incident would materially change the evidentiary posture.

Credibility concerns: The inconsistencies between the declaration and intake timeline are flagged by the officer and cannot be minimized. Attorney must obtain the RFE in full, identify precisely which inconsistencies are cited, and conduct a targeted follow-up interview before drafting the supplemental declaration. Avoid over-correcting — a declaration that suddenly resolves every inconsistency perfectly can itself raise credibility concerns.

Items requiring attorney-only review:

- The specific inconsistencies cited in the RFE text — staff should not analyze these without attorney guidance
- The PSG legal theory if pursued — particular social group definitions in Venezuelan political cases require careful framing post-Matter of A-B- and subsequent case law

- Whether the partially translated police report helps or hurts — a certified translation may reveal inconsistencies; attorney should review before submitting

Further client interview recommended: Yes — specifically targeted at the inconsistencies cited in the RFE, the identity of the threatening group, the circumstances of departure, and the police report context

8. Suggested Next Steps

8. **Escalate to attorney immediately — 30-day deadline; attorney must review RFE text, declaration, and intake notes before any drafting begins**
9. **Obtain full RFE text and identify exact inconsistencies cited — do not guess; work from the officer's specific language**
10. **Schedule targeted client interview — focus on RFE inconsistencies, group identity, departure circumstances, and police report context**
11. **Initiate psychological evaluation referral today — lead times are the biggest scheduling risk; explain the USCIS deadline to the evaluator**
12. Retain certified translator for police report — submit complete certified translation only
13. Begin witness affidavit outreach — start with U.S.-based witnesses; assess safety before contacting anyone in Venezuela
14. Draft nexus legal argument — attorney should begin in parallel with evidence gathering; do not wait for all evidence
15. Compile country conditions package — paralegal can begin pulling State Dept., HRW, Amnesty, and UNHCR materials immediately

Attorney review required before relying on this framework or submitting any immigration filing.